

22STCV35386 22STCV35386

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-09-24

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Case Number: 22STCV35386 Hearing Date: September 24, 2026 Dept: 507

TENTATIVE

RULING:

The Petition to Confirm Arbitration is GRANTED.

Moving party to give notice.

DISCUSSION:

A.

Legal

Standard

“Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.” (Code Civ. Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

B.

Filing

Requirements

Code of Civil Procedure section 1285.4 requires a petition

to confirm an arbitration award to set forth or attach: (a) the arbitration agreement; (b) the names of the arbitrators; and (c) a copy of the award and any written opinion. Defendant has attached a copy of the arbitration agreement as attachment 4(b), included the name of the arbitrator, and the award has been attached as Exhibit 2 to the motion, thus satisfying section 1285.4's requirements.

C.

Service of
the Petition and Notice of Hearing

Code of Civil Procedure section 1290.4 states in pertinent part:

(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

(Code Civ. Proc., § 1290.4.)

This requirement is met. Petitioner filed proof of service indicating service on Plaintiff by electronic mail and by mail on October 7, 2025.

D.

Service of
the Arbitration Award

Code of Civil Procedure section 1283.6 provides that: "The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement."¿ This requirement may be satisfied by service by the arbitrator or

upon proper service of the Award with the Petition. (See Murry v. Civil Service Employees Ins. Co. (1967) 254 Cal.App.2d 796, 799-800.)

Service of the award is attached with the award as Exhibit

2. It was served on May 13, 2025 by Mirra Jhang at JAMS. The requirement is satisfied.

E.

Timeliness

A party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. (Code Civ. Proc., §§ 1288, 1288.4.)

The award was served on May 13, 2025, and the hearing is set for September 24, 2026, which is within four years. The petition is timely.

F.

Merits –

Confirmation of the Award

The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286; Valsan Partners Limited Partnership v. Calcor Space Facility, Inc. (1994) 25 Cal.App.4th 809, 818.) The Court finds that Petitioner has established the procedural requirements have been met. The Arbitration Award seeks to vacate dismiss the action. (Ex. 2.) Defendant seeks to confirm the award and to dismiss the action. No response has been filed. “If [an] award is confirmed, judgment must be entered in conformity therewith.” (Jones v. Kvistad (1971) 19 Cal.App.3d 836, 840.) The arbitration award is proper to confirm.

CONCLUSION:

Accordingly, the Petition to Confirm Arbitration is GRANTED. The instant matter is dismissed with prejudice.

Any party may submit on the tentative ruling by contacting the courtroom via email at Smcdept507@lacourt.org by no later

than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.